

		<i>Plaintiff to give notice.</i>
109	Hernandez vs. Evergreen Royale, 24-01417052	Defendants Evergreen Royale, Ltd., and Jose Toro seek an order sustaining their demurrer to the 1st, 8th, 9th, 11th, and 13th causes of action of Plaintiff's Complaint based on failure to state sufficient facts to constitute a cause of action. Initially, a Request for Dismissal was filed on 5/18/2026 as to the 8th and 9th causes of action. As such, the demurrers to those causes of action are moot and will not be addressed. <i>MEET AND CONFER</i> Code of Civil Procedure section 430.41, subdivision (a) requires that prior to filing a demurrer, "the demurring party . . . meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer" Similarly, prior to filing a motion to strike, "the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike" (Code Civ. Proc. § 435.5(a).) Code of Civil Procedure section 430.41, subdivision (a)(3) requires that the demurring party file and serve with the demurrer a declaration stating either "[t]he means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer," or that "the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." "If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward

		reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 356.) Here, the declaration of Attorney Ross A. Spector, indicates that on October 21, 2025, he sent an email to Plaintiff’s attorney fully explaining the grounds for his clients’ position. (Decl. of Spector¶2.) Plaintiff’s counsel never responded to the email. (Id.¶3.) The above establishes no meet and confer as required by Code of Civil Procedure sections 430.41 or 435.5 effectively took place. Based on the foregoing, the Court CONTINUES the hearing on the demurrer and motion to strike to June 25, 2026 at 1:30 p.m. in Department W15. The Court ORDERS the parties to meet and confer in person, by zoom or video remote technology, concerning the issues raised in the demurrer and motion to strike. Defendant to file and serve a supplemental declaration setting forth the meet and confer efforts by counsel for the parties as to the issues raised by the demurrer and motion to strike, the outcome of the meet and confer, and what issues, if any, remain for the Court. The supplemental declaration to be filed no later than nine (9) court days before the new hearing date. The Case Management Conference is continued to June 25, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
110	Lee vs. Kingsbury, 25-01472404	<u>Demurrer</u> Defendant, Michael Kingsbury (“Kingsbury”), demurs to all seven causes of action asserted in the First Amended Complaint (“FAC”) of Plaintiff, Jessica V. Lee (“Plaintiff”). <i>Uncertainty</i> Kingsbury contends that the FAC contains multiple factual contradictions which render the pleading uncertain under Code of Civil Procedure §430.10(f) because Defendant